1) If Plaintiffs are attacking the renewed judgment, are they required to do so in the underlying case (N07-1969)? If they are allowed to attack the renewed judgment in this case, what is the procedural method for doing so?

2) Address how the declaratory relief claim would allow for a preliminary injunction here? Is the declaratory relief claim an attack on the renewed judgment? If so, is it a proper method for challenging a judgment or a renewed judgment?

3) Code of Civil Procedure section 683.170 provides 60 days to challenge a renewed judgment, but states it is not the exclusive remedy. Assuming that the Court finds that Plaintiffs met the requirements of Civil Code section 1504 in 2008, what is the procedural method (or methods) for challenging the addition of interest on the judgment? Is there a deadline to follow the procedure?

4) If the Court finds that the Moore & Baker invoice is not covered by the deed of trust, is it correct that the judgment covered the entire debt included in the deed of trust? In that situation, does Defendant have the option of nonjudicial foreclosure using the deed of trust or is he limited to pursing the judgment using judgment enforcement procedures?

5) Has there been any indication that Defendant intends to foreclose on the Danville property? If so, are there any dates scheduled for foreclosure?

14. 9:00 AM CASE NUMBER: C25-02434
CASE NAME: MANISHA RANE VS. HYUNDAI MOTOR AMERICA,
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: HYUNDAI MOTOR AMERICA,
****TENTATIVE RULING:****

Defendant, Hyundai Motor America Corporation (“defendant” or “Hyundai”), moves the Court under both the California Arbitration Act ("CAA") and the Federal Arbitration Act ("FAA") to compel plaintiffs to arbitrate the claims set forth in their complaint, and to stay this action pending the outcome of arbitration. Because Hyundai has failed to establish that an enforceable arbitration agreement exists between itself and plaintiffs based on the Owner’s Handbook, and because the Connected Services Agreement is permeated by unconscionability, the motion is **denied**, as discussed below.

I. Background

Plaintiffs Manisha R. Rane and Anand B. Shah allege that on December 11, 2024 they purchased a 2024 Hyundai Sonata EV. (Shah Declaration, ¶3; Rane Declaration, ¶3; Complaint, ¶8.) Plaintiffs assert that the vehicle was delivered with serious defects including, but not limited to emission and engine system defects. (Complaint, ¶10.) Plaintiffs presented the vehicle for repairs on multiple occasions, but Hyundai was unable to conform the vehicle to the “applicable express warranty” after a reasonable number of repair attempts. (Complaint, ¶¶11-12, 26.) Plaintiffs allege the vehicle was not fit for its ordinary purpose because it was equipped with one or more defective systems or components. (Complaint, ¶37.) Plaintiffs filed the present suit on August 26, 2025, alleging three causes of action under the Song-Beverly Act. In response, defendant filed this motion on September 29th.

Defendant's motion invokes the arbitration provisions found in a purported "Owner's Handbook & Warranty Information" and in a "Connected Services Agreement Terms and Conditions." In support of its motion, defendant provides a declaration from counsel, Jovanni Villa, who attaches the purported handbook, as well as plaintiff's complaint and defendant's demand for arbitration (Exhibits 2, 1, and 3, respectively). Defendant also provides a declaration from Vijay Rao, Hyundai's Director of Connected Ops & Owner Apps/Web, for Hyundai Motor America, Inc., who attaches the "Connected Services Agreement Terms and Conditions," as well as other documents he asserts are related to plaintiffs' purported agreement to the terms and conditions.

Plaintiffs oppose the motion, arguing defendant fails to show an agreement to arbitrate, that certain evidence is inadmissible, that the CSA does not cover their claims, and that the purported agreements are unconscionable. In support of the opposition, plaintiffs provide their own declarations and a declaration from counsel. Plaintiffs state they do not recall being "personally provided with a copy" of the Owner's Handbook, and that they were never informed about any arbitration provisions in the Owner's Handbook or being required to opt out within thirty days.

With its reply brief, defendant submits a declaration from Anthony Goel, a "Manager, Executive Case Management" at Hyundai, who states he is "familiar with [Hyundai]'s business practices as they relate to Hyundai vehicles" and that it is Hyundai's practice to place an Owner's Handbook in the glovebox of every vehicle sold through an authorized Hyundai dealership. (Goel Decl., ¶¶5, 7.) Goel further states that "after conducting a reasonable search of [Hyundai]'s records pertaining to arbitration opt-outs, Plaintiffs did not opt out of the Arbitration Agreement." (Goel Decl., ¶16.)

II. Evidentiary Matters

In support of the motion, Hyundai requests judicial notice of (1) plaintiffs' complaint, and (2) the "Hyundai 2024 Owner's Handbook and Warranty Information, Publication No. USAHYUNDAI-230727, Rev. 2023-07-27."

With respect to the complaint, the request is **granted**. With respect to the handbook, the request is **denied**. Hyundai does not state the purpose for its request. "Simply because information is on the Internet does not mean that it is not reasonably subject to dispute." (*Huitt v. Southern California Gas Co.* (2010) 188 Cal.App.4th 1586, 1605, fn. 10.)

Plaintiffs request judicial notice of federal regulations and legislative history concerning the Mangnuson-Moss Warranty Act. The request does not appear to be relevant to any argument made in the opposition. Accordingly, the request is **denied**.

Plaintiffs' objections to the evidence provided by defendant in support of the motion are ruled on as follows: **Objection nos. 1-3** (to counsel's statement purportedly identifying "Exhibit 2," to "Exhibit 2" itself, and paragraph 7 in the Rao Declaration stating plaintiffs enrolled their vehicle in Bluelink service) **are sustained, objection. 4** (a hearsay objection to a screenshot from the Bluelink enrollment process) **is overruled.**

III. Standard

A written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract. (Code Civ. Proc., § 1281.) The party seeking arbitration bears the burden of proving the existence of an arbitration agreement. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC, hereinafter "Pinnacle,"* (2012) 55 Cal.4th 223, 236.) In California, contract formation requires free and mutual consent communicated to each other. (Civ. Code, § 1565.) Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties. (*Esparza v. Sand & Sea, Inc.* (2016) 2 Cal.App.5th 781, 788.)

"[A] court, before granting a petition to compel arbitration, must determine the factual issue of 'the existence or validity of the arbitration agreement. In this way, a court's role, though limited, is critical. There is indeed a strong policy in favor of enforcing agreements to arbitrate, but there is no policy compelling persons to accept arbitration of controversies which they have not agreed to arbitrate and which no statute has made arbitrable." (*Toal v. Tardif* (2009) 178 Cal.App.4th 1208, 1219-1220.)

Once the party seeking to compel arbitration has alleged the agreement exists, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) The opposing party can do this in several ways. For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement. (*Ibid*.) If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties. (*Ibid*.)

IV. Analysis

Defendant's motion contends there are two different arbitration agreements that compel arbitration here: that found in the Owner's Handbook (Villa Decl. ¶3, Ex. 2) and that found in the CSA Terms & Conditions, to which customers purportedly must agree in order to enroll in Bluelink services (Rao Decl. ¶20, Ex. E).

A. Owners Handbook

1) Whether Agreement Was Formed

With respect to the Owner's Handbook, counsel's declaration in support of the motion infers (but does not actually state) that plaintiffs purchased a vehicle and received a manual that included an arbitration agreement. Exhibit 2 to the declaration is a document simply described as "Plaintiffs' 2024 Owner's Handbook & Warranty Information." (Villa Decl., ¶3, Ex. 2.) The exhibit contains arbitration requirements to which plaintiff must affirmatively opt out within 30 days.

Plaintiff responds that the attorney's moving declaration includes no information about the source of the document, or any personal foundation for how counsel knows that the attached exhibit is a document that applies to plaintiff. Perhaps more importantly, Hyundai provides insufficient evidence of acceptance by plaintiffs. (See *Norcia v. Samsung Telecommunications America, LLC* (9th Cir. 2017) 845 F.3d 1279, 1288-1290 [Ninth Circuit found arbitration provision in a warranty brochure to be insufficient to form an agreement to arbitrate with the consumer: "warranty generally does not impose any independent obligation on the buyer outside of the context of enforcing the seller's promises."])

Hyundai responds on reply by arguing that no evidence is necessary under *Condee v. Longwood Management Corp*. (2001) 88 Cal.App.4th 215, but that it is submitting the Goel Declaration, nonetheless. (See Response to Plaintiffs' Evidentiary Objections in Support of Motion.)

If anything, the Declaration of Anthony Goel highlights the lack of notice issue with respect to the arbitration provisions in the warranty. The declaration indicates only that a "handbook" for "owners" is placed in the glovebox of Hyundai vehicles sold at Hyundai's authorized dealerships. This does not suggest that any buyer of a Hyundai vehicle has read the arbitration clause before purchasing. The public website linked in Mr. Goel's declaration does not specify anything about arbitration unless one scrolls to the very bottom of the page (beneath all relevant information concerning what sort of warranty is provided) to the section entitled, "Additional Warranty Resources," and *downloads* a PDF that contains the entire handbook. This does not conform with reasonable consumer behavior.

A consumer is "not bound by inconspicuous contractual provisions of which he was unaware, contained in a document whose contractual nature is not obvious." (*Sellers v. JustAnswer LLC* (2021) 73 Cal.App.5th 444, 461.) Notice is the touchstone for assent to a contract, and in order to establish mutual assent, there must be actual or constructive notice of the agreement. (*Marin Storage & Trucking, Inc. v. Benco Contracting & Engineering, Inc*. (2001) 89 Cal.App.4th 1042, 1049-1050.)

"[I]n the absence of actual notice, a manifestation of assent may be inferred from the consumer's actions . . . but any such action must indicate the parties' assent to the same thing, which occurs only when the [provider] puts the consumer on constructive notice of the contractual terms." (*Sellers, supra*, 73 Cal.App.5th at 461; accord, *Herzog v. Superior Court* (2024) 101 Cal.App.5th 1280, 1293-1294.)

No such notice has been shown here. Thus, regardless of any apparent manifestation of consent by using the vehicle and taking it in for repairs, plaintiffs are "not bound by [the subject] inconspicuous contractual provisions of which [they were] unaware, contained in a document whose contractual nature is not obvious." (*Sellers, supra*, 73 Cal.App.5th at 461; *Herzog, supra*, 101 Cal.App.5th at 1293-1294.)

Plaintiffs properly objected to the introduction of the handbook (which was only attached to counsel's declaration) based on lack of foundation and hearsay. Those objections were sustained. Plaintiffs' declarations indicate they were not shown a copy of the warranty or otherwise informed by the dealer about an arbitration provision in the Owner's Handbook, and that they were not told to opt out of arbitration within 30 days if they desired to do so. (Rane Decl., ¶¶4-5; Shah Decl., ¶¶4-5 ["prior to this Motion, I was completely oblivious to the post-sale "Arbitration Agreement" that is buried within the Owner's Handbook".) The declarations sufficiently challenge the existence of an agreement such that defendant must present admissible evidence to show such agreement exists.

While *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, and California Rules of Court, rule 3.1330, decrease the *initial* burden on a party moving to compel arbitration, the court in *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158 explains the implications of that decision. Quoting *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846, the court notes that "[p]roperly understood, *Condee* holds that a petitioner is not required to authenticate an opposing party's signature on an arbitration agreement as a *preliminary* matter in moving for arbitration or in the event the authenticity of the signature is not challenged." (*Gamboa, supra*, 72 Cal.App.5th at 168.)

Addressing defendant's argument with respect to estoppel, the application of equitable estoppel principles might apply if plaintiffs had been put on notice of the arbitration agreement in the handbook prior to purchasing the vehicle and using it. But the facts here indicate otherwise. Aside from plaintiffs' own declarations stating they were not aware of it, or the opt-out requirements, the arbitration provisions appear in the "*Owner's* Handbook" suggesting one would not receive notice until after becoming the "owner" of the vehicle. Defendant has therefore failed to demonstrate mutual assent to arbitration.

In general, "[w]hen a plaintiff brings a claim which relies on contract terms against a defendant, the plaintiff may be equitably estopped from repudiating the arbitration clause contained in that agreement." (*JSM Tuscany, LLC v. Superior Court* (2011) 193 Cal.App.4th 1222, 1239.) Here, however, plaintiffs expressly deny reliance on the written terms of the warranty that appear in the handbook as the basis for their claims.

Hyundai does not show an arbitration agreement under the provisions in the Handbook.

B. Blue Link Connected Services Agreement

1) Whether Agreement Was Formed

As to the terms and conditions of the clickwrap CSA, they do contain a "Binding Arbitration" provision within Section 23, entitled "Resolving Disputes." The purported agreement any "Dispute," defined as follows:

> [A]ny legal claim or controversy arising out of, or relating to, these Terms and Conditions or breach of the New Vehicle Limited Warranty, as well as any claim or controversy regarding the applicability, enforceability, or validity of any provision of these Terms and Conditions and the New Vehicle Limited Warranty.

Plaintiffs have properly objected to the statement in paragraph 7 of Rao's declaration, that they enrolled their vehicle in Bluelink services. The Court has sustained the objection. Still, Rao also states that he is attaching an excel spreadsheet showing that plaintiffs assented. Plaintiffs do not object to the spreadsheet (Exhibit D), requiring the Court to proceed with analysis of the plaintiffs' unconscionability argument.

2) Unconscionability

Plaintiff asserts that the arbitration agreement in the CSA is unconscionable and bears the burden to prove this defense. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 126.) A contract is unconscionable if one of the parties lacked a meaningful choice in deciding whether to agree and the contract contains terms that are unreasonably favorable to the other party. (*Id*. at 125.) To prevail on an unconscionability defense, a party must establish both a procedural element and a substantive element. (*Ibid*.) The procedural element addresses the circumstances of contract negotiation and formation, focusing on oppression or surprise due to unequal bargaining power. (*Ibid*.) Substantive unconscionability pertains to the fairness of an agreement's actual terms and to assessments of whether they are overly harsh or one-sided. (*Ibid*.)

a) Procedural Unconscionability

As to procedural unconscionability, plaintiffs present little evidence as to the negotiation and formation of the contract (plaintiffs indicate the dealer representative said the vehicle was "already warranted under Defendant's express warranty"), but Hyundai's evidence indicates a classic adhesion contract. Plaintiff must have clicked a check box next to the following statement in very small font:

> By checking this box, I agree to the collection, use, disclosure, and processing of my personal information, including precise geolocation information and other sensitive personal information, *as described in* the Vehicle Technology and Services Privacy Notice and Connected Services Terms & Conditions.
>
> (Rao Decl., Ex. D, emphasis added.)

The text infers that the relevance of the links is described by the statement, in other words that the Connected Services Terms & Conditions "describe" the "collection, use, disclosure, and processing of [] personal information." The statement does not suggest the enrollee is agreeing to arbitrate disputes arising from the warranty claims or implied warranty claims.

The checkbox appears to be one of three boxes that must be checked in order to activate Bluelink services. This further demonstrates that the arbitration provisions are difficult to locate, and that plaintiffs had little to no opportunity to negotiate the terms of the contract. The arbitration provisions, purportedly covering all disputes stemming from the warranty or the CSA, are near the end of an agreement over 30 pages long. (See Opposition, 18:6-27 [erroneously stating the contract is 16 pages long].) The CSA is highly procedurally unconscionable here based on the adhesive nature of the agreement and element of surprise.

b) Substantive Unconscionability

Turning to substantive unconscionability, plaintiff points to attorney fee provisions that would purportedly contradict the Song Beverly Act's fee provisions favoring plaintiffs, as well as to the shortened statute of limitations which requires "ANY CLAIM AGAINST HYUNDAI OR GENESIS (OR ANY OTHER THIRD PARTY BENEFICIARY)" to be brought within "ONE YEAR AFTER THE CLAIM ARISES."

Hyundai, in its reply, points out that the specific phrasing about fees is not in this agreement. It also attempts to distinguish the cases cited by plaintiff relating to shortened statutes of limitations.

As to fees, Hyundai argues plaintiff's argument relates to language absent from the CSA. This is correct, but the Court notes the CSA limits Hyundai's liability to $500 or the total amount paid for connected services during the 12 months preceding a claim, "UNDER ANY THEORY (INCLUDING BUT NOT LIMITED TO FRAUD, MISREPRESENTATION, BREACH OF CONTRACT, PERSONAL INJURY, OR PRODUCTS LIABILITY)." (Rao Decl., Ex. E, ¶20.5 ["THE MAXIMUM AGGREGATE LIABILITY OF HYUNDAI"].) These fee provisions are substantively unconscionable.

As to the statute of limitations, the Court finds plaintiff's authorities persuasive. In *Fisher v. MoneyGram International, Inc.* (2021) 66 Cal.App.5th 1084, the appellate court held that a provision reducing a four-year statute of limitations to one-year was substantively unconscionable. Song-Beverly Act warranty claims are subject to a four-year statute of limitations. (*Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205, 213-215.) Shortening the limitations period to one year significantly limits the period to bring claims. Thus, the facts here are analogous to the facts at issue in *Fisher*.

Further, in *Gostev v. Skillz Platform, Inc.* (2023) 88 Cal.App.5th 1035, the court pointed to several nonmutual terms, "including, most notably, the requirement that only the plaintiff arbitrate his claims against the defendant, in its determination that the agreement was substantively unconscionable." The comparison is apt. Here, the CSA only limits Hyundai's monetary liability and only limits the time limits on claims brought by plaintiff.

Both the shortened one-year statute of limitations provision, as well as the one-sided limitation on liability cause the CSA to be permeated by substantively unconscionable terms.

The CSA is accordingly unconscionable and incapable of severance.

15. 9:00 AM CASE NUMBER: C25-02683
CASE NAME: ASCENT INVESTMENTS COMPANY LLC VS. PREMDIP DHOOT
HEARING IN RE: APPLICATION AND HEARING FOR RIGHT TO ATTACH ORDER AND ORDER FOR ISSUANCE OF WRIT RE: HD 2670 WALNUT BLVD MEMBER, LLC AND PREMDIP S. DHOOT
FILED BY: ASCENT INVESTMENTS COMPANY LLC
TENTATIVE RULING:

The Court continues Plaintiff Ascent Investments' hearing for a Right to Attach Order and Order for Issuance of a Writ, filed on November 3, 2025, *sua sponte.* The Court exercises its discretion to consider and review the late opposition filed by Defendants. This hearing is continued to March 11, 2026 at 9:00 a.m. Plaintiff's reply brief is due five (5) court days prior to the hearing. No appearance is required at the hearing on January 16, 2026.

Discovery Law & Motion

16. 9:01 AM CASE NUMBER: C23-01038
CASE NAME: DELVAN KITCHING VS. CARYN CASS
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER AND AMENDED RESPONSES TO REQUEST FOR ADMISSIONS, SET ONE**
FILED BY: KITCHING, DELVAN
TENTATIVE RULING:

The Discovery Motions for Lines 16, 17, 18 were vacated per the Court's Order appointing a Discovery Referee filed on January 14, 2026. No appearance is required on January 21, 2026. .

17. 9:01 AM CASE NUMBER: C23-01038
CASE NAME: DELVAN KITCHING VS. CARYN CASS
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER AND AMENDED RESPONSES TO REQUEST FOR FORM INTERROGATORIES, SET ONE**
FILED BY: KITCHING, DELVAN
TENTATIVE RULING:

See Line 16.

18. 9:01 AM CASE NUMBER: C23-01038
CASE NAME: DELVAN KITCHING VS. CARYN CASS
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER AND AMENDED RESPONSES TO REQUEST FOR SPECIAL INTERROGATORIES, SET ONE**
FILED BY: KITCHING, DELVAN
TENTATIVE RULING:

See Line 16.